

Hotel Management and Control of Sale and Distribution of Liquor Act, 1966

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Hotel Management and Liquor Sale and Distribution (Control) Act, 2023

Royal Seal and Publication Date

2023.6.9

Amending Acts

1. Judicial Administration Act, 2048

2048.2.16

Certification and Publication Date

2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066?

2066.10.07

3. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072

2072.6.14

4. Act to Amend Some Nepal Acts, 2072

2072.11.13

5. Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074

2074.6.30

6. Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075

2075.11.19

? This Act came into force from Jestha 15, 2065.

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Act No. 18 of the year 2023

?..... An Act Made to Control Hotel Management and Liquor Sale and Distribution

Preamble: Whereas it is desirable to control hotel management and liquor sale and distribution in order to maintain the morality, convenience, health and economic interest of the general public,

His Majesty King Mahendra Bir Bikram Shah Dev has, with the advice and consent of the National Panchayat, enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Hotel

Management and Liquor Sale and Distribution (Control) Act, 2023".

(2) This Act shall extend to the whole of Nepal ?..... .

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,?

(a) "Hotel" means a hotel run on a commercial basis providing accommodation facilities, with or without provision of meals (food and drink), and this word also includes a restaurant.

(b) "Proprietor" in relation to any hotel or shop means the persons having ultimate control over the business of the hotel or shop, and this word also includes a manager or managing agent appointed to run the affairs of such hotel or shop.

? Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

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(c) "Customer" means a customer coming to a hotel for meals (food and drink), whether or not residing in the hotel.

(d) "Liquor" means all kinds of foreign or domestic alcohol, including beer, prepared by fermenting fruits or grains or by any other method.

(e) "Shop" also includes a distillery shop.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Control on Sale and Serving of Liquor by Proprietor of Hotel or Shop: (1) After the commencement of this Act, the proprietor of a hotel or shop where liquor is served shall not sell or serve liquor to any person in his/her hotel or shop before 12:00 noon, and after 1:00 AM on Fridays and after 12:00 midnight on other days. (2) The hotel proprietor shall not arrange entertainment or dance and song for customers after 1:00 AM on Fridays and after 12:00 midnight on other days. (3) Notwithstanding anything contained in sub-sections (1) and (2), the Government of Nepal may, by publishing a notice in the Nepal Gazette, increase or decrease the time mentioned in those sub-sections as necessary. - 3 - 4. Not to Exhibit Obscene or Indecent Entertainment or Dance and Song in Hotel: The hotel proprietor shall not exhibit in his/her hotel any entertainment or dance and song of a type that adversely affects public morality or ethics. 5. Duties of Hotel Proprietor: (1) The duties of the hotel proprietor shall be as follows: (a) To record details including the name, citizenship, occupation, date of arrival and address of customers coming to the hotel. (b) To allow customers, other than those suffering from infectious or contagious diseases, to stay if rooms are vacant in the hotel. (c) To serve pure and wholesome food to customers at reasonable prices. (d) To provide or cause to be provided as much security or care as possible to customers. (e) To take custody of the customer's goods, cash or any other valuable item, if the customer wishes to entrust them, with the condition of returning them upon the customer's request, and to issue a receipt therefor. (f) To maintain peace and security when selling or serving liquor. (g) To keep the hotel clean and tidy. (h) Not to serve liquor to a customer to the extent of losing consciousness or in such quantity that the customer cannot maintain self-control. (i) To make arrangements for serving liquor in the inner part of the hotel. - 4 - (2) If goods taken into custody pursuant to clause (e) of sub-section (1) are destroyed by an act of God, the hotel proprietor shall not be liable for such goods. 6.

Auction of Customer's Goods: If a customer leaves his/her goods behind without paying the charges for staying and eating at the hotel, the hotel proprietor may, after seven days from the date of such departure,

publish a notice in local newspapers stating the details of such goods and the full name and address of the customer, giving a period of thirty-five days, and may auction such goods; and from the proceeds of such auction, after deducting the amount due to him/her and the expenses incurred in the auction, the remaining amount shall be paid to the customer when he/she comes to collect it. 7. Not to Sell or Serve Liquor to Minors and Intoxicated Persons: ? The proprietor of any hotel or shop shall not sell or serve liquor to children below the age of eighteen years and to persons who are already intoxicated by liquor. 8. Not to Sell or Serve Liquor in Specified Hotels, Shops or Areas: Notwithstanding anything contained in section 3, ?the Government of Nepal, Provincial Government or Local Level may, by publishing a notice in the Nepal Gazette, Provincial Gazette or Local Gazette, prohibit the sale and serving of liquor in such hotels, shops or areas as prescribed, as necessary. ? Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074. ? Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075. - 5 - 9. Prohibition on Entry of Customer Intoxicated by Liquor: The proprietor of any hotel or shop shall not knowingly allow a person intoxicated by liquor to enter his/her hotel or shop. 10. Penalty: (1) The prescribed authority may impose a fine of up to ?one hundred thousand rupees on a hotel proprietor who acts contrary to section 3, 5 or 7, or on a proprietor of any shop who acts contrary to section 3 or 7, and may, if deemed necessary, order the closure of such hotel or shop. (2) The prescribed authority may impose a fine of up to ?one hundred thousand rupees on a hotel proprietor who acts contrary to section 4, and shall stop the entertainment or dance and song that is being or about to be held in the hotel in contravention of that section. (3) A hotel or shop proprietor or any other person who contravenes section 8 or 9 may, by order of the prescribed authority, be punished with imprisonment for up to 3 months or a fine of up to ?twenty-five thousand rupees or both. 11. Appeal: A person dissatisfied with the punishment given under section 10 may appeal against the order of such punishment to ?the District Court. 12.

Hotel Management and Sale and Distribution (Control) Act, 2023

Royal Seal and Date of Publication

2023.6.9

Amending Acts

1. Judicial Administration Act, 2048 2048.2.16
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
3. Act to Maintain Gender Equality and End Gender-Based Violence Amending Some Nepal Acts, 2072 2072.6.14
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6. Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075 2075.11.19

Act No. 18 of 2023

An Act Made to Regulate the Management of Hotels and the Sale and Distribution of Alcohol

Preamble: Whereas it is desirable to regulate the management of hotels and the sale and distribution of alcohol for maintaining the morality, convenience, health and economic interests of the general public;

Therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Hotel Management and Sale and Distribution (Control) Act, 2023".

(2) This Act shall extend throughout Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Hotel" means a hotel operated on a commercial basis providing accommodation facilities, with or without provision of food (meals), and this term also includes a restaurant.

(b) "Proprietor" in relation to any hotel or shop means the person or persons having ultimate control over the business of the hotel or shop, and this term also includes a manager or managing agent appointed to manage the affairs of such hotel or shop, if any.

(c) "Customer" means a customer who comes to a hotel for food (meals), whether or not staying in the hotel.

(d) "Alcohol" means all kinds of foreign or domestic liquor and beer prepared by fermenting fruits or grains or by any other method.

(e) "Shop" also includes a distillery shop.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Control on Proprietors of Hotels or Shops Selling and Serving Alcohol: (1) After the commencement of this Act, the proprietor of a hotel or shop with provision for serving alcohol shall not sell or serve alcohol to any person in his hotel or shop before 12 o'clock noon, and after 1 o'clock at night on Friday and after 12 o'clock at night on other days. (2) The hotel proprietor shall not arrange entertainment or singing and dancing for customers after 1 o'clock at night on Friday and after 12 o'clock at night on other days. (3) Notwithstanding anything contained in sub-sections (1) and (2), the Government of Nepal may, by publishing a notice in the Nepal Gazette, increase or decrease the time mentioned in those sub-sections as necessary. 4. Prohibition on Showing Obscene or Indecent Entertainment or Singing and Dancing in Hotels: A hotel proprietor shall not show in his hotel any entertainment or such singing and dancing that adversely affects public morality or ethics. 5. Duties of a Hotel Proprietor: (1) The duties of a hotel proprietor shall be as follows:- (a) To record details including the name, citizenship, occupation, date of arrival and address of customers arriving at the hotel. (b) To provide accommodation to customers, other than those suffering from contagious or infectious diseases, if rooms are available in the hotel. (c) To serve pure and wholesome food to customers arriving at the hotel at reasonable prices. (d) To provide or cause to provide maximum possible security or care to customers. (e) If a customer wishes to entrust goods, cash or any other valuables, to take them into his custody and issue a receipt thereof, with a commitment to return them when demanded by the customer. (f) To take care of peace and security when selling or serving alcohol. (g) To keep the hotel clean and tidy. (h) Not to serve alcohol to a customer to the extent of causing loss of consciousness or making the customer unable to control himself. (i) To make arrangements for serving alcohol in the interior part of the hotel. (2) The hotel proprietor shall not be liable for goods taken into custody under clause (e) of sub-section (1) if they are destroyed by an act of God. 6.

Auction of Customer's Goods: If a customer leaves his goods behind without paying the expenses for staying and eating at the hotel, the hotel proprietor may, after 7 days from the date of such departure, publish a notice in local newspapers giving a period of thirty-five days, specifying the details of such goods and the full name and address of the customer, and auction such goods; and from the amount realized by such auction, after deducting the amount due to him and the expenses incurred for the auction, the remaining amount shall

be paid to the customer when he comes to collect it. 7. Prohibition on Selling and Serving Alcohol to Minors and Intoxicated Persons: Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074. No proprietor of any hotel or shop shall sell or serve alcohol to children below the age of eighteen years and to persons who are already intoxicated. 8. Prohibition on Selling and Serving Alcohol in Specified Hotels, Shops or Areas: Notwithstanding anything contained in Section 3, the Government of Nepal, Provincial Government or Local Level may, by publishing a notice in the Nepal Gazette, Provincial Gazette or Local Gazette as necessary, prohibit the sale and serving of alcohol in hotels, shops or areas prescribed in such notice. 9. Prohibition on Entry of Intoxicated Customers: The proprietor of any hotel or shop shall not knowingly allow a person intoxicated by alcohol to enter his hotel or shop. 10. Penalty: (1) A hotel proprietor acting contrary to Section 3, 5 or 7, or a proprietor of any shop acting contrary to Section 3 or 7, shall be liable to a fine of up to Amended by the Act to Maintain Gender Equality and End Gender-Based Violence Amending Some Nepal Acts, 2072.one hundred thousand rupees by the prescribed authority, and may be ordered to close such hotel or shop if deemed necessary. (2) A hotel proprietor acting contrary to Section 4 may be fined up to Amended by the Act to Maintain Gender Equality and End Gender-Based Violence Amending Some Nepal Acts, 2072.one hundred thousand rupees by the prescribed authority, and any entertainment or singing and dancing contrary to that section ongoing or likely to occur in the hotel shall be stopped. (3) A proprietor of a hotel or shop or any other person violating Section 8 or 9 may, by order of the prescribed authority, be punished with imprisonment for up to 3 months or Amended by the Act to Maintain Gender Equality and End Gender-Based Violence Amending Some Nepal Acts, 2072.a fine of up to twenty-five thousand rupees or both. 11.